

Calendar Line 3

Case Name: *Martinez v. Intapp, Inc.*
Case No.: 24CV436820

This is a putative class and representative action arising from alleged wage and hour violations. The parties have reached a settlement, and the Court granted Plaintiff's motion for preliminary approval of the settlement on April 10, 2026. Before the Court is Plaintiff's motion for final approval of the settlement. As discussed below, the Court GRANTS the motion and sets a compliance hearing for April 14, 2027 at 2:30 p.m. in Department 5.

I. Legal Standard

"In general, questions whether a settlement was fair and reasonable, whether notice to the class was adequate, whether certification of the class was proper, and whether the attorney fee award was proper are matters addressed to the trial court's broad discretion." (*Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 234-235, disapproved of on other grounds by *Hernandez v. Restoration Hardware, Inc.* (2018) 4 Cal.5th 260.) The trial court is free to engage in a balancing and weighing of factors depending on the circumstances of each case. (*Id.* at p. 245.) The most important factor is the strength of the plaintiffs' case on the merits, balanced against the amount offered in settlement. (See *Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 130.)

Labor Code section 2699, subdivision (1)(2) provides that "[t]he superior court shall review and approve any settlement of any civil action filed pursuant to" the Private Attorneys General Act ("PAGA"). The trial court must "determine independently whether a PAGA settlement is fair and reasonable," to protect "the interests of the public and the LWDA in the enforcement of state labor laws." (*Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 76-77.) A PAGA settlement may be substantially discounted, and courts often exercise their discretion to award PAGA penalties below the statutory maximum. (*Carrington v. Starbucks Corp.* (2018) 30 Cal.App.5th 504, 529; *Amaral v. Cintas Corp. No. 2* (2008) 163 Cal.App.4th 1157, 1213.)

II. Terms and Administration of Settlement

A. Settlement Terms

This case has been settled on behalf of the following class:

All individuals employed by Defendant Intapp, Inc. in the State of California from April 26, 2020 to July 31, 2025.

(Declaration of Jose Macias, Jr. in Support of Motion for Preliminary Approval, Ex. 1 (“Agreement”).) Although the Court’s order granting preliminary approval defined the class period as running through February 4, 2026, Defendant elected to shorten the class period to July 31, 2025 pursuant to the terms of the parties’ Agreement. The settlement includes a subset group of PAGA Aggrieved Employees, defined as all individuals employed by Defendant as employees in California at any time during the PAGA Period [April 26, 2023 through July 31, 2025].

Defendant will pay a gross settlement amount of \$275,000, and this amount includes: attorney fees of up to one-third of the gross settlement amount (\$91,666.67); litigation costs not to exceed \$15,000 (of which \$12,758.19 is sought); a PAGA penalties allocation of \$27,500 (75 percent of which, or \$20,625, will be paid to the LWDA, and 25 percent of which, or \$6,875, will be paid to Aggrieved Employees as part of the net settlement amount); a service payment of up to \$5,000 to Plaintiff; and settlement administration costs up to \$8,250. (Motion, pp. 2–4.) The settlement is non-reversionary, and no class member is required to submit a claim form. The net settlement amount will be distributed to participating class members on a pro-rata basis according to the number of months they were employed by Defendant during the Class Period, and individual PAGA payments will be distributed according to the number of months worked during the PAGA Period. The Agreement provides that Phoenix Settlement Administrators (“Phoenix”) will serve as settlement administrator. The Agreement provides that any funds from uncashed settlement checks will be transmitted to Bay Area Legal Aid. The Court approves the *cy pres* designation.

In exchange for the settlement, the class members agree to release Defendant and related entities and persons from all claims, rights, demands, liabilities, and causes of action reasonably arising from, or reasonably related to, the same set of operative facts as those set

forth in the operative Complaint in the Action during the Class Period. Aggrieved Employees will be deemed to release Defendant and related entities and persons from any and all claims under the Private Attorneys General Act, California Labor Code sections 2698, et seq., that were alleged or could reasonably have been alleged based on the same facts alleged in the operative Complaint and the PAGA notice, arising during the PAGA Period. The release provisions are appropriately tailored to the factual allegations of the operative pleading. (See *Amaro v. Anaheim Arena Management, LLC* (2021) 69 Cal.App.5th 521, 538.)

B. Administration of Settlement

In its order granting Plaintiff’s motion for preliminary approval, the Court approved Phoenix as settlement administrator. On April 23, 2026, Defendant provided the class data to Phoenix, and the Class List contained 309 Class Members. (Declaration of Mayra Gonzalez on Behalf of Phoenix Settlement Administrators (“Gonzalez Decl.”), ¶ 3.) On May 8, 2026, Phoenix mailed the Class Notice to all 309 individuals on the Class List by first-class mail. (*Id.* at ¶ 5.) Sixteen notices were returned as undeliverable; Phoenix performed skip traces and re-mailed fourteen of them, leaving two notices ultimately undeliverable. (*Id.* at ¶¶ 6–7.) The deadline to request exclusion, submit a written objection, or dispute the number of months worked was June 22, 2026. (*Id.* at ¶¶ 8–10.) As of the date of Ms. Gonzalez’s declaration, Phoenix had received one request for exclusion, zero objections, and zero month disputes. (*Ibid.*) There are 308 Settlement Class Members, representing 99.68 percent of the Class. (*Id.* at ¶ 11.) Phoenix estimates the average individual settlement payment will be approximately \$421.51, and the average individual PAGA payment will be approximately \$29.76. (*Id.* at ¶¶ 14–15.) The notice process has now been completed.

At preliminary approval, the Court found the settlement to be fair and reasonable. Given that there are no objections, it finds no reason to deviate from that finding now. Accordingly, the Court finds that the settlement is fair and reasonable for purposes of final approval.

III. Service Award, Attorney Fees and Costs

Plaintiff seeks a service award of \$5,000. Plaintiff has provided a declaration detailing his participation in this litigation and the risks he undertook by being the named plaintiff. The Court finds that a service award is justified and the amount requested is reasonable. The service award is approved in the amount requested.

Plaintiff's counsel seeks an attorney fee award of \$91,666.67, which is one-third of the gross settlement amount and equal to the one-third maximum set by the Agreement. (Motion, pp. 12–14; Declaration of Jose Macias, Jr. in Support of Motion for Final Approval (“Macias Decl.”), ¶¶ 10–17.) Plaintiff's counsel represents that the lodestar for this action is \$109,727.80, based on 124.7 hours billed at hourly rates ranging from \$508 to \$1,019. Because the lodestar exceeds the requested fee, the requested award reflects a negative multiplier, which confirms its reasonableness under a lodestar cross-check. The benefits achieved by the settlement justify an award of attorney fees to Class Counsel. The Court approves an attorney fee award in the requested amount.

Plaintiff's counsel requests reimbursement of litigation costs in the amount of \$12,758.19, which is within the \$15,000 cap set by the Agreement, and they provide an itemized list in support. (Motion, p. 14; Macias Decl., ¶¶ 19–20 and Ex. 2.) The Court approves reimbursement of litigation costs in the requested amount. Settlement administration costs are likewise approved in the requested amount of \$8,250. (Gonzalez Decl., ¶ 17 and Ex. B.)

IV. Conclusion

The Court GRANTS the motion and sets a compliance hearing for April 14, 2027 at 2:30 p.m. in Department 5.

Plaintiff shall prepare the order.

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Calendar Line 4

Case Name: *Wilson v. Google LLC*
Case No.: 25CV463465

Disclosure

A judge has a duty to decide any proceeding in which they are not disqualified.

I am required to disclose that included in the diverse portfolio of multiple investment interests held in my family trust are stock shares in the parent company of defendant Google, Alphabet Inc. This trust is entirely managed by an independent financial advisor who makes decisions regarding investment purchases, sales and overall holdings. Though the trust is not a blind trust, I rely entirely upon the expertise of the advisor, and I am not involved in making these investment decision.

I have carefully considered the scope and extent of this interest in the context of being assigned this case, and I have relied upon the discussion and advice provided by the Judicial Ethics Committee of the California Judges Association, particularly Formal Ethics Opinion No. 59. Opinion 59 addresses precisely the issue presented here. I will provide counsel with a copy.

I have concluded I am not disqualified from this case, and I can assure counsel and the parties that I am confident in my ability to be fair and impartial. Although I conclude I am not disqualified, I am required by my ethical responsibilities to make this disclosure.

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Tentative Ruling on Demurrer:

Defendant Google LLC (“Google”) demurs to each of the three causes of action in the First Amended Complaint (“FAC”) of plaintiff Katherine Wilson (“Plaintiff”), which allege violations of the California Invasion of Privacy Act (“CIPA”), Penal Code sections 631, 632, and 635. Google has also filed a Request for Judicial Notice (“RJN”). Having considered the papers submitted and the applicable authorities, the Court rules as follows.

The demurrer to the first cause of action (section 631) and the second cause of action (section 632) is OVERRULED. The demurrer to the third cause of action (section 635) is SUSTAINED WITH LEAVE TO AMEND. Google’s Request for Judicial Notice is GRANTED IN PART and DENIED IN PART as set forth below.